

DEED
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1968⁷

AMENDMENT TO RESTRICTIONS

THE STATE OF TEXAS
COUNTY OF BRAZORIA

This Amendment to Restrictions executed on this 18th day of October, 1972, by Tenneco Realty Development Corporation, a Delaware corporation,

W I T N E S S E T H:

WHEREAS, Tenneco Realty Development Corporation, being then the owner of all of certain tracts of land situate in Brazoria County, Texas, has heretofore platted said tracts into that certain subdivision known as "Columbia Lakes," according to plats thereof recorded in the Plat Records of Brazoria County, Texas, as follows:

Plat of:

Where Recorded

Section 1
Section 2
Section 3

Volume 14 at Pages 37 and 38
Volume 14 at Pages 53 and 54
Volume 14 at Pages 65 and 66

; and,

WHEREAS, Tenneco Realty Development Corporation has heretofore adopted and impressed restrictions upon Section 1 of said subdivision, according to that certain instrument of Restrictions dated July 18, 1972, and recorded in Volume 1128 at Page 911 of the Deed Records of Brazoria County, Texas, said instrument of Restrictions, as amended, being hereinafter referred to as the "Restrictions"; and

WHEREAS, as of the date hereof Tenneco Realty Development Corporation is the "Developer" as such term is defined in the aforesaid Restrictions; and

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WHEREAS, Article I of the Restrictions reserves the right to the Developer to amend the Restrictions to include additional Sections of Columbia Lakes in addition to Section 1; and

WHEREAS, Tenneco Realty Development Corporation amended such Restrictions by instrument dated August 17, 1972, recorded on August 18, 1972, in Volume 1131 at Page 678 of the Deed Records of Brazoria County, Texas, which instrument, among other things, amended the Restrictions to include Section 2 in the definition of "Subdivision" contained therein; and

WHEREAS, Tenneco Realty Development Corporation now wishes further to amend to the Restrictions to include an additional Section;

NOW, THEREFORE, KNOW ALL MEN BY THESE PRESENTS, That Tenneco Realty Development Corporation does hereby adopt and promulgate the following amendment to the Restrictions:

The definition of "Subdivision" appearing in Article I of the Restrictions shall be amended to read as follows:

Subdivision - Columbia Lakes, Section 1, Section 2 and Section 3 according to the recorded plats thereof in the Plat Records of Brazoria County, Texas, as follows:

Plat of:

Where Recorded

Section 1
Section 2
Section 3

Volume 14 at Pages 37 and 38
Volume 14 at Pages 53 and 54
Volume 14 at Pages 65 and 66

It is the intention of the Developer to include all of the premises, except as herein expressly excluded, in said plats and that said premises are to be divided according to said plats into lots and blocks as shown on said plats.

The Developer hereby reserves the right to amend this instrument (by appropriate instrument which when executed and recorded shall constitute an amendment to this instrument) to include other Sections located within Columbia Lakes. Following such amendment to this instrument, such section(s) shall be included in the definition of "Subdivision."

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IN WITNESS WHEREOF, Tenneco Realty Development Corporation has caused this instrument to be executed by its officers thereunto duly authorized on the day and year first above written and to become effective on the day next following the day on which this instrument is recorded in the Deed Records of Brazoria County, Texas.

TENNECO REALTY DEVELOPMENT CORPORATION

By Kenneth H. Klopp
Kenneth H. Klopp, President

ATTEST:

L. R. Stevens, Jr.
Secretary

FILED FOR RECORD
AT 1:37 O'CLOCK P. M.

OCT 18 1972

H. R. STEVENS, JR.
CLERK COUNTY COURT, BRAZORIA CO., TEXAS
BY L. R. Stevens, Jr. DEPUTY

THE STATE OF TEXAS
COUNTY OF HARRIS

BEFORE ME, the undersigned authority, on this day personally appeared Kenneth H. Klopp, known to me to be the person whose name is subscribed to the foregoing instrument as President of TENNECO REALTY DEVELOPMENT CORPORATION, and acknowledged to me that he executed the same for the purposes and consideration therein expressed, in the capacity therein stated, and as the act and deed of said corporation.

GIVEN UNDER MY HAND AND SEAL OF OFFICE, on this the 18th day of October, 1972

Lurene E. Williams
Notary Public in and for
Harris County, Texas

LURENE E. WILLIAMS
Notary Public in and for Harris County, Texas
My Commission Expires June 1, 1973.

FILED FOR RECORD
AT 1:37 O'CLOCK P. M.

OCT 18 1972

H. R. STEVENS, JR.
CLERK COUNTY COURT, BRAZORIA CO., TEXAS
BY L. R. Stevens, Jr. DEPUTY